

CODE

Membership

Draft for member review | 29 September 2026

Plain language summary

Does not take anyone off the current list. It is the section 10 path if electors later assume control, with a written decision and an appeal. Indian Act subsection 10(4) protects a right to be on the list that a person already had.

Working draft. Not in force. Control of the list has not moved under this paper. Laws cited were read on the Justice Canada consolidations current to 21 September 2026, the Charter and Constitution Act, 1982 consolidation, and the Treaty No. 8 text published by Crown-Indigenous Relations and Northern Affairs Canada. This draft is not a legal opinion.

Part 1. Purpose and the limit

1.1 This instrument sets how a new application is decided if, and only if, the electors assume control of membership under Indian Act section 10.

1.2 Indian Act subsection 10(1) says a band may assume control if it establishes written membership rules and, after appropriate notice, a majority of the electors consent. Subsection 10(2) requires the same consent to establish the rules and a review mechanism. Subsection 10(4) says the rules must not deprive a person who had the right to be on the Band List immediately before the rules of that right by reason only of a situation that existed, or an action taken, before the rules came into force.

1.3 Until the Minister gives notice under subsection 10(7) that the band has control, the Department's rules remain. This instrument does not remove anyone from the current list. A council letter that purports to remove a person before that notice is void. The appeal body must post the letter within 7 days of receiving it.

Part 2. Applications after control passes

2.1 An applicant files a written application with the records officer. The records officer must acknowledge it in writing within 14 days and must say what evidence is missing.

2.2 Council must decide in writing within 90 days of a complete application. The decision must say yes or no, cite the rule, and tell the applicant about the 30 day appeal. A decision that misses day 90 is a deemed refusal on day 91. The applicant may appeal on day 92.

2.3 A person who is immediate family of the applicant must not vote on the application. The vote is void if that person votes, and the application must be reheard within 30 days by councillors who are eligible. If quorum cannot be met, the appeal body decides within 45 days.

Part 3. Review

3.1 The applicant, or any member, may appeal to the appeal body within 30 days of the decision or the deemed refusal. The appeal body must decide within 45 days. It must not delete a person protected by Indian Act subsection 10(4).

3.2 Council must give the Minister the notice required by subsection 10(6) within 7 days of the elector vote that assumes control, with a copy of these rules. Council must post the Minister's reply within 7 days of receiving it. If council does not send the notice, the vote still stands, the appeal body posts the omission on day 8, and council honoraria stop until the notice is sent.

Part 4. Amendment

4.1 Council must not amend this membership instrument by resolution. A resolution that purports to amend it is void on the day it is signed. A person who signs that resolution must not move a money resolution for 90 days. The appeal body must post the breach within 14 days.

4.2 An amendment passes only if a majority of all electors vote yes. A majority of the ballots cast is not enough. The Indian Act, section 2(3)(a), uses that same count for a power of the band: consent of a majority of the electors.

4.3 The electoral officer must post the full proposed text at least 45 days before the vote and must certify the elector list 30 days before the vote. A vote held on shorter notice is void.

4.4 The electoral officer must post the count within 3 days. If the count in 4.2 is not met, the amendment does not come into force.

Part 5. Review and coming into force

5.1 The appeal body must review this membership instrument every 4 years, counted from the day it comes into force, and must post a written report within 60 days after that anniversary. The report does not amend this membership instrument.

5.2 Within 90 days of that report, council must either put a recommended amendment to the electors under Part 4, or post written reasons for not doing so. If council does neither, the appeal body must post that omission on day 91, and council honoraria stop on day 91 until one of those two things is done.

5.3 this membership instrument comes into force on the day after the electors approve it under Part 4. Until that day it is a draft. It does not repeal an election code, by-law, or policy already in force.

5.4 Where a law already in force sets its own replacement rule, this membership instrument replaces that law only if the electors also meet that rule. A lawyer should compare the two texts before the vote.

5.5 The records officer must keep the adopted text posted for at least 10 years. If it is not posted by day 10 after the vote, the records officer must post a written reason that day, and the appeal body must appoint a replacement records officer within a further 10 days.

This is not a legal opinion. A lawyer, or a person whose work is First Nation governance, should review this draft before members vote. A by-law that conflicts with the Indian Act, the Criminal Code, or another federal law is of no effect to the extent of the conflict. Police and Crown prosecution of a band by-law is uneven. The Minister's steps under the First Nations Financial Transparency Act, section 13, are discretionary. The consequences in this instrument are internal for that reason.